



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

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THIRD SECTION

Application no. 14680/22
Evangelia ZAVRIDOU
against Cyprus
lodged on 14 March 2022
communicated on 8 March 2023

SUBJECT MATTER OF THE CASE

The application concerns the non-enforcement of two orders issued by the Family Court of Nicosia owing to the opposition of the children's father. Specifically, on 25 October 2019 the court granted the applicant custody and care of her two children and on 5 June 2020 ordered the father to surrender the children to her. On account of the father's failure to abide by the latter, the court sentenced him to forty-five days' imprisonment. During his imprisonment the children remained at the father's house with his parents, and they were not surrendered to the applicant.

Relying on Articles 6 and 8 of the Convention the applicant complains about the alleged inefficiency of the Cypriot authorities in swiftly and diligently enforcing the orders and in making all efforts necessary to reunite her with her children, according to the Family Court's orders in her favour.

QUESTION TO THE PARTIES

Has there been a violation of the applicant's right to respect for her family life contrary to Article 8 of the Convention in so far as the enforcement of the

ZAVRIDOU v. CYPRUS – SUBJECT MATTER OF THE CASE AND QUESTIONS

Family Court of Nicosia orders adopted on 25 October 2019 and 5 June 2020 is concerned? In particular, have the Cypriot authorities complied with their positive obligations under Article 8 of the Convention, including the obligation to assist the applicant in her efforts to be reunited with her children (see, among many authorities, *Milovanović v. Serbia*, no. 56065/10, §§ 115-19, 8 October 2019 and *Ignaccolo-Zenide v. Romania*, no. 31679/96, § 94 ECHR 2000-I)?

The parties are requested to provide information concerning the relevant legal framework as regards the enforcement of custodial and contact rights.